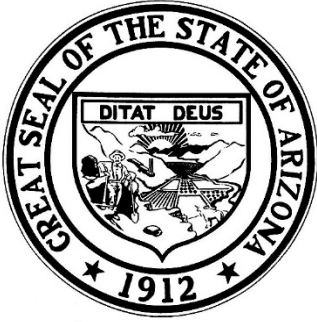




Bill Number: S.B. 1720

Bolick Floor Amendment

Reference to: JUDICIARY AND ELECTIONS

Committee Amendment

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

1. Modifies the prescribed relevant factors to a child's physical and emotional well-being to include the child's attachment relationships, developmental stage and developmental needs, including the need for stability, continuity of care and emotional security.
2. Requires the court, when determining that equal parenting time is not in the child's best interests, to consider the child's age, developmental stage, attachment needs and ability to tolerate frequent transitions between households.
3. Requires the court to prioritize stability, continuity of care and the child's emotional security, for decisions involving children of a young age or those with developmental needs.
4. Outlines conditions which prohibit a presumption of equal parenting time, including conditions relating to orders of protection and domestic violence, and conditions in which the court finds that equal parenting time would endanger the child.
5. Allows the court to consider the child's wishes in approving a parental agreement, if the child is of suitable age and maturity.
6. Prohibits the court from ordering equal parenting time over the objection of a child unless the court makes specific findings that the order will not endanger the child.
7. Requires the court to make a specific finding that both parents are safe and do not pose a risk of harm to the child before applying a presumption of equal parenting time.
8. Removes the requirement that the court consider newly established criteria relating to equal parenting time presumptions when awarding temporary legal decision-making or parenting time.

BOLICK FLOOR AMENDMENT
SENATE AMENDMENTS TO S.B. 1720
(Reference to JUDICIARY AND ELECTIONS Committee amendment)

Amendment instruction key:

[GREEN UPPERCASE UNDERLINING IN BRACKETS] indicates that the amendment is adding text to statute or previously enacted session law.

[Green lowercase underlining in brackets] indicates that the amendment is adding text to new session law or is restoring previously stricken text to existing statute.

~~[GREEN UPPERCASE STRIKEOUT IN BRACKETS]~~ indicates that the amendment is removing new text from statute or previously enacted session law.

~~[Green lowercase strikeout in brackets]~~ indicates that the amendment is removing text from existing statute, previously enacted session law or new session law.

<<Double green carets enclosing an entire section>> indicates that the amendment is adding the section to the bill.

~~<<Green strikeout with double green carets enclosing an entire section>>~~ indicates that the amendment is removing the section to the bill.

{{ORANGE UPPERCASE UNDERLINING IN DOUBLE CURLY BRACKETS}} indicates that the amendment to an amendment is adding text to statute or previously enacted session law.

{{Orange lowercase underlining in double curly brackets}} indicates that the amendment to an amendment is adding text to new session law or is restoring previously stricken text to existing statute.

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≤≤Double orange underlined carets enclosing an entire section>> indicate that the amendment to an amendment is adding the section to the bill.

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1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 25-403, Arizona Revised Statutes, is amended to
3 read:

4 25-403. Legal decision-making; best interests of child

5 A. The court shall determine legal decision-making ~~and parenting~~
6 ~~time~~, either originally or on petition for modification, in accordance
7 with the best interests of the child. The court shall consider all
8 factors that are relevant to the child's physical and emotional
9 well-being, including:

10 1. The past, present and potential future relationship between the
11 parent and the child.

12 2. The interaction and interrelationship of the child with the
13 child's parent or parents, the child's siblings and any other person who
14 may significantly affect the child's best ~~interest~~ INTERESTS.

15 3. The child's adjustment to home, school and community.

16 4. If the child is of suitable age and maturity, the wishes of the
17 child as to legal decision-making ~~and parenting time~~.

1 5. The mental and physical health of all individuals involved.

2 6. Which parent is more likely to allow the child frequent,
3 meaningful and continuing contact with the other parent. This paragraph
4 does not apply if the court determines that a parent is acting in good
5 faith to protect the child from witnessing an act of domestic violence or
6 being a victim of domestic violence or child abuse.

7 7. Whether one parent intentionally misled the court to cause an
8 unnecessary delay, to increase the cost of litigation or to persuade the
9 court to give a legal decision-making ~~or a parenting time~~ preference to
10 that parent.

11 8. Whether there has been domestic violence or child abuse pursuant
12 to section 25-403.03.

13 9. The nature and extent of coercion or duress used by a parent in
14 obtaining an agreement regarding legal decision-making ~~or parenting time~~.

15 10. Whether a parent has complied with chapter 3, article 5 of this
16 title.

17 11. Whether either parent was convicted of an act of false
18 reporting of child abuse or neglect under section 13-2907.02.

19 12. THE CHILD'S AGE, {{DEVELOPMENTAL STAGE, DEVELOPMENTAL}}
20 NEEDS{{(_)}} {{AND}} EXISTING PARENTAL BONDS {{AND ATTACHMENT RELATIONSHIPS,
21 INCLUDING THE CHILD'S NEED FOR STABILITY, CONTINUITY OF CARE AND EMOTIONAL
22 SECURITY}}.

23 B. In a contested legal decision-making ~~or parenting time~~ case, the
24 court shall make specific findings on the record about all relevant
25 factors and the reasons for which the decision is in the best interests of
26 the child.

27 Sec. 2. Section 25-403.01, Arizona Revised Statutes, is amended to
28 read:

29 25-403.01. Sole and joint legal decision-making and parenting
30 time

31 A. In awarding legal decision-making, the court may order sole
32 legal decision-making or joint legal decision-making.

33 B. In determining the level of **LEGAL** decision-making that is in the
34 child's best interests, the court shall consider the factors prescribed in
35 section 25-403, subsection A and all of the following:

36 1. The agreement or lack of an agreement by the parents regarding
37 joint legal decision-making.

38 2. Whether a parent's lack of an agreement is unreasonable or is
39 influenced by an issue not related to the child's best interests.

40 3. The past, present and future abilities of the parents to
41 cooperate in **LEGAL** decision-making about the child to the extent required
42 by the order of joint legal decision-making.

43 4. Whether the joint legal decision-making arrangement is
44 logistically possible.

45 C. An order for sole legal decision-making does not allow the
46 parent designated as sole legal decision-maker to alter unilaterally a
47 court-ordered parenting time plan.

48 D. A parent who is not granted sole **LEGAL DECISION-MAKING** or joint
49 legal decision-making is entitled to ~~reasonable~~ parenting time **PURSUANT TO**

1 SECTION 25-403.11 to ensure that the minor child has substantial,
2 frequent, meaningful and continuing contact with the parent unless the
3 court finds, after a hearing, that parenting time would endanger the
4 child's physical, mental, moral or emotional health.

5 Sec. 3. Section 25-403.02, Arizona Revised Statutes, is amended to
6 read:

7 25-403.02. Parenting plans

8 A. If the child's parents cannot agree on a plan for legal
9 decision-making or parenting time, each parent must submit a proposed
10 parenting plan.

11 B. Consistent with the child's best interests AS PRESCRIBED in
12 ~~section~~ SECTIONS 25-403 AND 25-403.11 and sections 25-403.03, 25-403.04
13 and 25-403.05, the court shall adopt a parenting plan that provides for
14 both parents to share legal decision-making regarding their child and that
15 maximizes their respective parenting time. The court shall not prefer a
16 parent's proposed plan because of the parent's or child's gender.

17 C. Parenting plans shall include at least the following:

18 1. A designation of the legal decision-making as joint or sole as
19 defined in section 25-401.

20 2. A description of each parent's rights and responsibilities for
21 the personal care of the child and for decisions in areas such as
22 education, health care and religious training.

23 3. A practical schedule of parenting time for the child, including
24 holidays and school vacations.

25 4. A procedure for the exchanges of the child, including location
26 and responsibility for transportation. The parenting plan must specify
27 ~~when~~ WHETHER the exchange is required to take place at a safe exchange
28 location pursuant to section 25-403.10.

29 5. A procedure by which proposed changes, relocation of where a
30 child resides with either parent pursuant to section 25-408, disputes and
31 alleged breaches may be mediated or resolved, which may include the use of
32 conciliation services or private counseling.

33 6. A procedure for periodic review of the PARENTING plan's terms by
34 the parents.

35 7. A procedure for parents to communicate with each other about the
36 child, including methods and frequency.

37 8. A statement that each party has read, understands and will abide
38 by the notification requirements of section 25-403.05, subsection B.

39 D. If the parents are unable to agree on any element to be included
40 in a parenting plan, the court shall determine that element. The court
41 may determine other factors that are necessary to promote and protect the
42 emotional and physical health of the child.

43 E. Shared legal decision-making does not necessarily mean equal
44 parenting time.

1 Sec. 4. Title 25, chapter 4, article 1, Arizona Revised Statutes,
2 is amended by adding section 25-403.11, to read:

3 25-403.11. Parenting time; equal time; best interests of
4 child; definitions

5 A. IN ANY PARENTING TIME PROCEEDING, THE COURT SHALL PRESUME THAT
6 AN AWARD OF EQUAL PARENTING TIME IS IN THE BEST INTERESTS OF THE CHILD IF
7 BOTH OF THE FOLLOWING APPLY:

8 1. BOTH PARENTS ARE DETERMINED BY THE COURT TO BE FIT~~{{;}}~~
9 ~~{{PARENTS WHO ARE}}~~ WILLING AND ABLE TO SHARE EQUAL PARENTING TIME.

10 2. BOTH PARENTS RESIDE WITHIN TWENTY-FIVE MILES OF THE CHILD'S
11 SCHOOL OR OTHER EDUCATIONAL SETTING.

12 B. THE PRESUMPTION THAT EQUAL PARENTING TIME IS IN THE BEST
13 INTERESTS OF THE CHILD MAY BE REBUTTED BY ~~[CLEAR AND CONVINCING]~~ [A
14 PREPONDERANCE OF THE] EVIDENCE. IF THE COURT ENTERS A PARENTING TIME
15 AWARD THAT DOES NOT INCLUDE EQUAL PARENTING TIME, THE COURT SHALL MAKE
16 SPECIFIC FINDINGS ON THE RECORD ABOUT ALL RELEVANT FACTORS AND THE REASONS
17 FOR WHICH AN AWARD OF EQUAL PARENTING TIME IS NOT IN THE BEST INTERESTS OF
18 THE CHILD. IN DETERMINING THAT AN AWARD OF EQUAL PARENTING TIME IS NOT IN
19 THE BEST INTERESTS OF THE CHILD, THE COURT~~{{;}}~~
20 1.}} MAY CONSIDER THE FOLLOWING FACTORS:

21 ~~{{1.}}~~ {{(a)}} WHETHER THERE HAS BEEN DOMESTIC VIOLENCE OR CHILD
22 ABUSE BY EITHER PARENT.

23 ~~{{2.}}~~ {{(b)}} WHETHER THERE HAS BEEN ONGOING ABUSE OF DRUGS OR
24 ALCOHOL BY EITHER PARENT.

25 ~~{{3.}}~~ {{(c)}} THE MENTAL HEALTH OF BOTH PARENTS.

26 ~~{{4.}}~~ {{(d)}} THE GEOGRAPHIC LOCATION OF BOTH PARENTS.

27 ~~{{5.}}~~ {{(e)}} WHETHER THERE HAS BEEN INTERFERENCE BY ONE PARENT
28 WITH THE OTHER PARENT'S RELATIONSHIP WITH THE CHILD.

29 ~~{{6.}}~~ {{(f)}} THE PROVISIONS OF SECTION 25-403.05.

30 ~~{{2. SHALL CONSIDER THE CHILD'S AGE, DEVELOPMENTAL STAGE,~~
31 ATTACHMENT NEEDS AND ABILITY TO TOLERATE FREQUENT TRANSITIONS BETWEEN
32 HOUSEHOLDS.

33 3. FOR CHILDREN OF A YOUNG AGE OR WITH SPECIAL DEVELOPMENTAL NEEDS,
34 SHALL PRIORITIZE STABILITY, CONTINUITY OF CARE AND THE CHILD'S EMOTIONAL
35 SECURITY.

36 C. THERE IS NOT A PRESUMPTION OF EQUAL PARENTING TIME IN ANY OF THE
37 FOLLOWING CIRCUMSTANCES:

38 1. THE COURT MAKES A FINDING OF THE EXISTENCE OF SIGNIFICANT
39 DOMESTIC VIOLENCE PURSUANT TO SECTION 13-3601 OR THE COURT FINDS BY A
40 PREPONDERANCE OF THE EVIDENCE THAT THERE HAS BEEN A SIGNIFICANT HISTORY OF
41 DOMESTIC VIOLENCE AS DESCRIBED IN SECTION 25-403.03.

42 2. THERE IS A CURRENT OR PRIOR ORDER OF PROTECTION OR INJUNCTION
43 AGAINST HARASSMENT INVOLVING THE CHILD OR OTHER PARENT.

44 3. THE COURT FINDS THAT EQUAL PARENTING TIME WOULD ENDANGER THE
45 CHILD'S PHYSICAL, MENTAL, MORAL OR EMOTIONAL HEALTH.

46 4. A PARENT HAS BEEN ORDERED TO COMPLETE DOMESTIC VIOLENCE OFFENDER
47 TREATMENT, SUBSTANCE ABUSE TREATMENT, MENTAL HEALTH TREATMENT OR ANY OTHER
48 COURT-ORDERED INTERVENTION. THIS PARAGRAPH DOES NOT APPLY IF THE COURT

1 MAKES SPECIFIC WRITTEN FINDINGS THAT THE PARENT HAS DONE ALL OF THE
2 FOLLOWING:

3 (a) SUCCESSFULLY COMPLETED ALL COURT-ORDERED PROGRAMS IN FULL.

4 (b) DEMONSTRATED MEANINGFUL BEHAVIORAL CHANGE.

5 (c) COMPLIED WITH ALL TERMS OF THE COURT'S PRIOR ORDERS.

6 (d) NOT ENGAGED IN ANY FURTHER ACTS OF DOMESTIC VIOLENCE, COERCIVE
7 CONTROL, HARASSMENT OR ENDANGERING CONDUCT.

8 (e) ESTABLISHED BY CLEAR AND CONVINCING EVIDENCE THAT EQUAL
9 PARENTING TIME WOULD NOT ENDANGER THE CHILD'S PHYSICAL, MENTAL, MORAL OR
10 EMOTIONAL HEALTH.

11 5. THE CHILD IS LESS THAN SIX YEARS OF AGE.

12 6. THE ARRANGEMENT WOULD BE DEVELOPMENTALLY INAPPROPRIATE OR
13 DETRIMENTAL TO THE CHILD.

14 D. IF BOTH PARENTS VOLUNTARILY AGREE TO EQUAL PARENTING TIME AND
15 THE COURT FINDS THAT THE AGREEMENT IS KNOWING, VOLUNTARY AND IN THE
16 CHILD'S BEST INTERESTS, THE COURT MAY ORDER EQUAL PARENTING TIME. IF THE
17 CHILD IS OF SUITABLE AGE AND MATURITY, THE COURT MAY CONSIDER THE CHILD'S
18 WISHES IN APPROVING THE PARENTAL AGREEMENT. THE COURT MAY NOT ORDER EQUAL
19 PARENTING TIME OVER THE OBJECTION OF A CHILD OF SUITABLE AGE AND MATURITY
20 UNLESS THE COURT MAKES SPECIFIC FINDINGS THAT THE ORDER WILL NOT ENDANGER
21 THE CHILD. THE COURT SHALL ENSURE THAT THE CHILD'S WISHES ARE FREELY
22 EXPRESSED AND ARE NOT THE RESULT OF COERCION, PRESSURE OR UNDUE INFLUENCE
23 BY EITHER PARENT. THIS SECTION DOES NOT PREVENT THE COURT FROM APPROVING
24 EQUAL PARENTING TIME WHEN BOTH PARENTS AGREE AND THE COURT FINDS THAT THE
25 ARRANGEMENT IS SAFE AND IN THE CHILD'S BEST INTERESTS.

26 E. THIS SECTION DOES NOT LIMIT THE COURT'S AUTHORITY OR OBLIGATION
27 TO PROTECT THE CHILD'S SAFETY AS THE PRIMARY CONSIDERATION WHEN
28 DETERMINING PARENTING TIME. BEFORE APPLYING THE PRESUMPTION OF EQUAL
29 PARENTING TIME, THE COURT SHALL MAKE A SPECIFIC FINDING THAT BOTH PARENTS
30 ARE SAFE AND DO NOT POSE A RISK OF HARM TO THE CHILD.}}

31 ~~{{C.}}~~ ~~{{E.}}~~ FOR THE PURPOSES OF THIS SECTION{{.}} ~~{{F.}}~~

32 ~~{{1.}}~~ "EQUAL PARENTING TIME" MEANS THAT EACH PARENT IS AWARDED AT
33 LEAST FORTY-FIVE PERCENT OF OVERNIGHT VISITS WITH THE CHILD ANNUALLY,
34 ALLOWING FOR ADJUSTMENTS FOR HOLIDAYS, THE CHILD'S SCHOOL SCHEDULE AND THE
35 PARENT'S EMPLOYMENT.

36 ~~{{2. "FIT PARENT" MEANS A PARENT WHO HAS NOT BEEN FOUND TO HAVE~~
37 COMMITTED DOMESTIC VIOLENCE AS DEFINED IN SECTION 13-3601, ABUSE OR
38 NEGLECT AS DEFINED IN SECTION 8-201 OR OTHER CONDUCT THAT WOULD ENDANGER
39 THE CHILD.}}

40 ~~Sec. 5. Section 25-404, Arizona Revised Statutes, is amended to~~
41 ~~read:~~

42 ~~25-404. Temporary orders~~

43 ~~A. A party to a legal decision-making and parenting time proceeding~~
44 ~~may move for a temporary order. This motion must be supported by~~
45 ~~pleadings as provided in section 25-411. The court may award temporary~~
46 ~~legal decision-making and parenting time under the standards of section~~
47 ~~25-403 AND 25-403.11 after a hearing, or, if there is no objection, solely~~
48 ~~on the basis of the pleadings.~~

~~B. If a proceeding for dissolution of marriage or legal separation is dismissed, any temporary legal decision-making or parenting time order is vacated unless a parent or the child's custodian moves that the proceeding continue as a legal decision-making or parenting time proceeding and the court finds, after a hearing, that the circumstances of the parents and the best interest of the child require that a legal decision-making or parenting time plan decree be issued.~~

~~C. If a legal decision-making or parenting time proceeding commenced in the absence of a petition for dissolution of marriage or legal separation is dismissed, any temporary custody LEGAL DECISION-MAKING OR PARENTING TIME order thereby is vacated.}}~~

Sec. 5. Section 25-408, Arizona Revised Statutes, is amended to read:

25-408. Rights of each parent; parenting time; relocation of child; exception; attorney fees; costs; access to prescription medication and records

A. If by written agreement or court order both parents are entitled to joint legal decision-making or parenting time and both parents reside in ~~the~~ THIS state, at least forty-five days' advance written notice shall be provided to the other parent before a parent may do either of the following:

1. Relocate the child outside ~~the~~ THIS state.

2. Relocate the child more than one hundred miles within ~~the~~ THIS state.

B. The notice required by this section shall be made by certified mail, return receipt requested, or pursuant to the Arizona rules of family law procedure. The court shall sanction a parent who, without good cause, does not comply with the notification requirements of this subsection. The court may impose a sanction that will affect legal decision-making or parenting time only in accordance with the child's best interests.

C. Within thirty days after notice is made, the nonmoving parent may petition the court to prevent relocation of the child. After expiration of this time, any petition or other application to prevent relocation of the child may be granted only on a showing of good cause. This subsection does not prohibit a parent who is seeking to relocate the child from petitioning the court for a hearing, on notice to the other parent, to determine the appropriateness of a relocation that may adversely affect the other parent's legal decision-making or parenting time rights.

D. Subsection A of this section does not apply if provision for relocation of a child has been made by a court order or a written agreement of the parties that is dated within one year of the proposed relocation of the child.

E. If a child is relocated pursuant to this section, unless otherwise ordered by the court, all parties must continue to comply with current court orders, regardless of distance moved or notice required.

F. Pending the determination by the court of a petition or application to prevent relocation of the child:

1 1. A parent with sole legal decision-making or a parent with joint
2 legal decision-making and primary residence of a child who is required by
3 circumstances of health, safety, employment or eviction of that parent or
4 that parent's spouse to relocate in less than forty-five days after
5 written notice has been given to the other parent may temporarily relocate
6 with the child.

7 2. A parent who shares joint legal decision-making and
8 substantially equal parenting time and who is required by circumstances of
9 health, safety, employment or eviction of that parent or that parent's
10 spouse to relocate in less than forty-five days after written notice has
11 been given to the other parent may temporarily relocate with the child
12 only if both parents execute a written agreement to ~~permit~~ ALLOW
13 relocation of the child.

14 G. The court shall determine whether to allow the parent to
15 relocate the child in accordance with the child's best interests. The
16 burden of proving what is in the child's best interests is on the parent
17 who is seeking to relocate the child. To the extent practicable the court
18 shall also make appropriate arrangements to ensure the continuation of a
19 meaningful relationship between the child and both parents.

20 H. The court shall not deviate from a provision of any parenting
21 plan or other written agreement by which the parents specifically have
22 agreed to allow or prohibit relocation of the child unless the court finds
23 that the provision is no longer in the child's best interests. There is a
24 rebuttable presumption that a provision from any parenting plan or other
25 written agreement is in the child's best interests.

26 I. In determining the child's best interests, the court shall
27 consider all relevant factors, including:

28 1. The factors prescribed ~~under section~~ IN SECTIONS 25-403 AND
29 25-403.11.

30 2. Whether the relocation is being made or opposed in good faith
31 and not to interfere with or to frustrate the relationship between the
32 child and the other parent or the other parent's right of access to the
33 child.

34 3. The prospective advantage of the move for improving the general
35 quality of life for the custodial parent or for the child.

36 4. The likelihood that the parent with whom the child will reside
37 after the relocation will comply with parenting time orders.

38 5. Whether the relocation will allow a realistic opportunity for
39 parenting time with each parent.

40 6. The extent to which moving or not moving will affect the
41 emotional, physical or developmental needs of the child.

42 7. The motives of the parents and the validity of the reasons given
43 for moving or opposing the move, including the extent to which either
44 parent may intend to gain a financial advantage regarding continuing child
45 support obligations.

46 8. The potential effect of relocation on the child's stability.

47 J. The court shall assess attorney fees and court costs against
48 either parent if the court finds that the parent has unreasonably denied,
49 restricted or interfered with court-ordered parenting time.

1 K. Pursuant to section 25-403.06, each parent is entitled to have
2 access to prescription medication, documents and other information about
3 the child unless the court finds that access would ~~endanger~~ seriously
4 ~~ENDANGER~~ the child's or a parent's physical, mental, moral or emotional
5 health.

6 Sec. 6. Legislative findings

7 The legislature finds:

8 1. That the public policy of this state is to promote the best
9 interests of the child by encouraging frequent, meaningful and continuing
10 contact with both parents following a legal separation or dissolution of
11 marriage.

12 2. That children benefit emotionally, academically and
13 developmentally when both parents are significantly involved in the
14 child's life.

15 3. That equal parenting time reduces conflict, fosters stability
16 and safeguards the fundamental rights of both the child and the child's
17 parents.

18 4. That a rebuttable presumption that equal parenting is in the
19 best interests of the child reduces unnecessary litigation and protects
20 children from adversarial custody disputes.

21 Sec. 7. Short title

22 This act may be cited as the "Arizona Equal Shared Parenting Act".

23 Enroll and engross to conform

24 Amend title to conform

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